

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, CHANCERY DIVISION

LUCAS GUARIGLIA, individually and derivatively)
on behalf of ROWBOAT CREATIVE, LLC, a)
Delaware limited liability company,)
)
Plaintiff,)
)
v.)
)
JOSEPH ZANGRILLI)
)
Defendant,)
)
And)
)
ROWBOAT CREATIVE, LLC,)
)
Necessary Part Defendant.)
)

Case No. 2024 CH 00720
Judge Pamela McLean Meyerson

RECEIVER’S THIRD REPORT

Howard Samuels and Ryan Hayes and agents and employees of Rally Capital Services, LLC of 350 N. LaSalle Street, Suite 1100, Chicago, Illinois, 60654, not individually, but solely as the duly appointed Receiver (the “Receiver”), his agents and requisite staff, with respect to Rowboat Creative, LLC, a business located at 4200 W. Diversey Ave., Dock 6, Chicago, IL 60639 (the “Business”), pursuant to an order entered in this court on February 14, 2024, hereby submits this Third Receiver’s Report (the “Third Report”) for the period May 7, 2024 through May 28, 2024 (the “Period) as follows:

APPOINTMENT

Effective February 14, 2024, Howard Samuels and Ryan Hayes were appointed by the Honorable Judge David B. Atkins in the County of Cook, State of Illinois for the Business. Order attached as Exhibit A.

Receiver’s Contact Information:

Howard B. Samuels
Ryan M. Hayes
howard@rallyllc.com
ryan@rallyllc.com
312-645-1975
350 N. LaSalle St.
Suite 1100
Chicago, IL 60654

RECEIVER'S BOND

The Receiver was not required to obtain a bond for this appointment.

INSURANCE

The Receiver obtained copies of the Business insurance policies and requested to be added as additional insured to the commercial general liability policy, auto liability, and excess liability, on a primary and non-contributory basis with a waiver of subrogation in favor of the additional insured. A copy of the certificate is hereby attached as **Exhibit B**.

DESCRIPTION OF THE BUSINESS

Rowboat Creative, LLC was a creative merchandising agency that offers custom screen printing, embroidery, direct to garment, dye sublimation, live branding, creative design, and fulfillment services.

EXISTING LITIGATION

The Receiver is aware that certain creditors may be considering taking action against the debtor for unpaid debts but is not aware of any filed lawsuits at this point in time.

OVERVIEW OF ACTIVITY DURING THE PERIOD

Since the April 5, 2024 court hearing, at which the Receiver was granted the authority to liquidate the business assets and or sell the business as a going concern, attached **Exhibit C**, and the Receiver took steps wind down the operations, complete what orders could be reasonably completed in a timely fashion, and terminate the employee base. The Receiver prepared a notice to all creditors (**Exhibit D**) informing them of the situation and has disseminated that notice to creditors and continues to do so as he becomes aware of additional creditors.

It should be noted that ownership remains in a deadlock and is unlikely to agree on any reasonable direction with respect to the sale of the business assets, and specifically the intellectual property.

Since the hearing on May 9, 2024, the Receiver has received a revised LOI for specific assets of the business, from one of the two shareholders, Lucas Guariglia. The Receiver is also in possession of another, second LOI from an unrelated third-party. Both LOI's are attached as **Exhibit E**. Upon review and consideration of both LOI's, it is the Receiver's opinion that the offer from Lucas Guariglia provides the unsecured creditors with the highest and best recovery and brings a more immediate closure to the estate, as the offer from the third-party is contingent on sales over an 18-month period and would require some level of administration from the Receiver over that time frame. The Receiver does not expect Joseph Zangrilli to make an offer as Joseph Zangrilli's counsel has made it clear that Mr. Zangrilli does not intend on submitting an offer for the business assets.

In addition to the LOI's discussed above, the Receiver has obtained two proposals from auctioneers to sell the equipment as well as a proposal from a bulk buyer. The Receiver will be moving forward with the entity who provided the most favorable pricing and the highest and best bid for these assets.

The Receiver has also been working with ownership and the landlord to bring parties to the table to step into the Rowboat Creative lease and/or acquire the equipment as part of a packaged deal.

Unfortunately, the Receiver has not been able to secure a party as of this writing. It is the Receiver intent to work with the landlord to exit the premise in a quick and orderly fashion, and if possible, provide an interested party for the space.

BUSINESS OPERATIONS AND STATEMENT OF FINANCIAL AFFAIRS

As previously noted, the business could no longer support its expenses based on the fact that sales goals were difficult to achieve, and vendor debts and the requested payment plans could not be maintained.

As noted above, the Receiver has been providing all creditors with claim forms and is accumulating verified submissions to handle debts on a pro-rata and priority basis, subject to administrative expenses after the liquidation and monetization of all assets is complete.

The Receiver has addressed all outstanding payroll obligations and plans to ensure sales tax liabilities, and funds due back the Rowboat Creative 53rd bank account are covered with the limited remaining funds available.

Receiver's Bank Balance = \$4,928.43

RECEIVER RECOMMENDATIONS

At this point in time, the Receiver believes the best path for the business and its creditors is to sell the assets under an APA, consistent with Lucas Guariglia's LOI, sell the equipment to the bulk buyer, sell any remaining assets, which would be minimal, to any willing buyer or scrapper, return any customer owned items that remain, and provide the landlord with a broom swept facility. The Receiver plans to pool together the proceeds from the collective sales and distribute to the creditors who have submitted bona fide claims on a pro-rate basis. The liquidation timeline is contingent on the relationship with the landlord, which remains amicable at this point in time and the distribution to creditors to occur shortly thereafter.

PROFESSIONAL FEES

A detailed invoice showing hourly services provided by the Receiver and his agents at Rally Capital Services for the month of April 2024 totals **\$17,465.78**. The invoice listed below is hereby submitted to the Court for approval, attached as **Exhibit F**. Together with the attached invoice, the Receiver is requesting approval to deduct his administrative fees from the liquidation proceeds, currently totaling **\$44,143.28**.

- i. Invoice 25817 - \$17,465.78

EXHIBITS

- A.** Order Appointing Receiver
- B.** Insurance Certificate
- C.** Order Authorizing the Receiver to Sell and / or Liquidate the Business
- D.** Notice to Creditors
- E.** Submitted LOI's
- F.** Receiver's Professional Fees

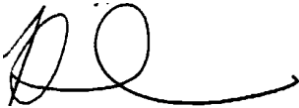
IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, CHANCERY DIVISION

LUCAS GUARIGLIA, individually and derivatively)
on behalf of ROWBOAT CREATIVE, LLC, a)
Delaware limited liability company,)
)
Plaintiff,)
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v.)
)
JOSEPH ZANGRILLI)
)
Defendant,)
)
And)
)
ROWBOAT CREATIVE, LLC,)
)
Necessary Part Defendant.)

Case No. 2024 CH 00720
Judge Pamela McLean Meyerson

VERIFICATION

Howard Samuels, 350 N. LaSalle Street, Suite 1100, Chicago, Illinois, 60654, not individually, but solely as the duly appointed Receiver (the "Receiver") with respect to Rowboat Creative, LLC, a business located at 4200 W. Diversey Ave., Dock 6, Chicago, IL 60639 (the "Business"), having been first duly sworn on oath, deposes, and states that he has read the Receiver's Third Report, and the facts contained therein are true to the best of his knowledge and belief.



Howard B. Samuels, not individually, but solely as the
duly appointed Receiver

After recording return to:
Rally Capital Services, LLC
350 N. LaSalle Street
Suite 1100
Chicago, IL 60654
Attn: Ryan M. Hayes

EXHIBIT A

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS

Lucas Guariglia

v.

No. 2024 CH 00720

Joseph Zangrilli

and Rowboat Creative, LLC, necessary
party defendant

ORDER

This matter coming to be heard on Plaintiff's Emergency Motion for Temporary Restraining Order and to Appoint a Receiver, due notice being given, Defendant appearing via Zoom and not opposing the appointment of a receiver, and the Court being fully advised in the premises, it is HEREBY ORDERED:

- 1) Howard Samuels, Ryan Hayes, and agents + employees of Rally Capital are appointed as Receiver, effective immediately until further order of court to assess condition of business, safeguard company assets, and make necessary business decisions, and the like associated with running the business;
- 2) The Receiver is to be provided access to all accounts, records, information and the like relating to the business and both Plaintiff and Defendant must cooperate and work with the Receiver;
- 3) No party may take, directly or indirectly, individually or ~~through~~ ^{By directing} ~~the~~ business finances, assets, or a third party, any actions relating to the ~~business~~ ^{business} finances, assets, or accounts, including distributions to members or otherwise, ~~without~~ ^{with} the direction or approval of the Receiver;

Atty. No.: 41704 / BWMS

Name: Alex Marks / BWMS

Atty. for: Plaintiff

Address: 330 N. Wabash Ave, 21st Fl.

City/State/Zip: Chicago, IL 60611

Telephone: 312-840-7022

Dated: JUDGE DAVID B. ATKINS,

FEB 14 2024
Circuit Court-1879

Judge

Judge's No.

EXHIBIT B



THE HARTFORD
BUSINESS SERVICE CENTER
3600 WISEMAN BLVD
SAN ANTONIO TX 78251

February 16, 2024

Howard B. Samuels as Receiver
350 N LA SALLE ST 1100
CHICAGO IL 60654-0004

Account Information:

Policy Holder Details :	ROWBOAT CREATIVE, LLC
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Contact Us

Need Help?

Chat online or call us at
(866) 467-8730.

We're here Monday - Friday.

Enclosed please find a Certificate Of Insurance for the above referenced Policyholder. Please contact us if you have any questions or concerns.

Sincerely,

Your Hartford Service Team



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)
02/16/2024

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER INSURANCE ASSOC OF AMERICA LLC 83412066 17500 WEST LIBERTY LANE NEW BERLIN WI 53146	CONTACT NAME:	
	PHONE (262) 789-8500 (A/C, No, Ext):	FAX (A/C, No):
	E-MAIL ADDRESS:	
	INSURER(S) AFFORDING COVERAGE	
	INSURER A : Sentinel Insurance Company Ltd.	
INSURED ROWBOAT CREATIVE, LLC 4200 W DIVERSEY AVE CHICAGO IL 60639-2047	NAIC# 11000	
	INSURER B :	
	INSURER C :	
	INSURER D :	
	INSURER E :	
	INSURER F :	

COVERAGES

CERTIFICATE NUMBER:

REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSR	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/Y YYY)	LIMITS		
A	COMMERCIAL GENERAL LIABILITY	X	X	83 SBA AE6473	07/08/2023	07/08/2024	EACH OCCURRENCE	\$2,000,000	
	☐ CLAIMS-MADE ☒ OCCUR						DAMAGE TO RENTED PREMISES (Ea occurrence)	\$1,000,000	
	☒ General Liability						MED EXP (Any one person)	\$10,000	
							PERSONAL & ADV INJURY	\$2,000,000	
							GENERAL AGGREGATE	\$4,000,000	
	GEN'L AGGREGATE LIMIT APPLIES PER:						PRODUCTS - COMP/OP AGG	\$4,000,000	
	☐ POLICY ☐ PRO-JECT ☒ LOC								
	OTHER:								
A	AUTOMOBILE LIABILITY			83 SBA AE6473	07/08/2023	07/08/2024	COMBINED SINGLE LIMIT (Ea accident)	\$2,000,000	
	ANY AUTO							BODILY INJURY (Per person)	
	ALL OWNED AUTOS						☐ SCHEDULED AUTOS	BODILY INJURY (Per accident)	
	HIRED AUTOS						☒ NON-OWNED AUTOS	PROPERTY DAMAGE (Per accident)	
	☒ AUTOS								
A	☒ UMBRELLA LIAB	☒ OCCUR	83 SBA AE6473	07/08/2023	07/08/2024	EACH OCCURRENCE	\$4,000,000		
	☐ EXCESS LIAB	☐ CLAIMS-MADE				AGGREGATE	\$4,000,000		
	☐ DED ☒ RETENTION \$ 10,000								
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY	Y/N	N/A				☐ PER STATUTE ☐ OTH-ER		
	ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH)						E.L. EACH ACCIDENT		
	If yes, describe under DESCRIPTION OF OPERATIONS below						E.L. DISEASE -EA EMPLOYEE		
							E.L. DISEASE - POLICY LIMIT		
A	EMPLOYMENT PRACTICES LIABILITY			83 SBA AE6473	07/08/2023	07/08/2024	Each Claim Limit	\$10,000	
							Aggregate Limit	\$10,000	

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

Those usual to the Insured's Operations.

CERTIFICATE HOLDER

Howard B. Samuels as Receiver
350 N LA SALLE ST 1100
CHICAGO IL 60654-0004

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Suean L. Castaneda

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ADDITIONAL REMARKS SCHEDULE

AGENCY INSURANCE ASSOC OF AMERICA LLC		NAMED INSURED ROWBOAT CREATIVE, LLC 4200 W DIVERSEY AVE CHICAGO IL 60639-2047	
POLICY NUMBER SEE ACORD 25			
CARRIER SEE ACORD 25	NAIC CODE		
EFFECTIVE DATE: SEE ACORD 25			

ADDITIONAL REMARKS

THIS ADDITIONAL REMARKS FORM IS A SCHEDULE TO ACORD FORM

FORM NUMBER: ACORD 25 FORM TITLE: CERTIFICATE OF LIABILITY INSURANCE

Coverage is primary and noncontributory per the Business Liability Coverage Form SS0008, attached to this policy. Waiver of Subrogation applies in favor of the Certificate Holder per the Business Liability Coverage Form SS0008, attached to this policy. Certificate holder is an additional insured per the Business Liability Coverage Form SS0008, attached to this policy.

FILED DATE: 5/29/2024 5:40 PM 2024CH00720

EXHIBIT C

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, CHANCERY DIVISION

LUCAS GUARIGLIA, individually and derivatively on)
behalf of ROWBOAT CREATIVE, LLC, a Delaware)
limited liability company,)

Plaintiff,)

v.)

Case No. 24 CH 00720

JOSEPH ZANGRILLI)

Defendant,)

And)

ROWBOAT CREATIVE, LLC,)

Necessary Party Defendant.)

ORDER ON RECEIVER SPECIFIC AUTHORITY

This matter coming to be heard on the Plaintiff's Motion for Specific Receiver Authority (the "Motion"), due notice being given, and the Court being fully advised in the premises, it is

HEREBY ORDERED:

1. The Motion is hereby granted, and, given the information contained in the April 3, 2024, Report of the Receiver, the Receiver is hereby authorized to market for sale, and sell, and/or liquidate, the assets of Rowboat Creative, LLC, and to otherwise take all steps necessary to minimize its liabilities or potential liabilities.
2. The status date set for April 15, 2024, at 10:15 am is hereby stricken.
3. This case is set over to May 9, 2024, at 10:15 am, via Zoom (Zoom ID: 928 9663 2736; Password: 813107), for further status.

Judge Pamela McLean Meyerson

Date: APR 05 2024

Circuit Court--2097

Entered by:



EXHIBIT D



April 26, 2024

To All Known Creditors of: Rowboat Creative, LLC
4200 West Diversey Avenue
Chicago, IL 60639

RE: Appointment of Receiver, Sale of Assets, and Liquidation of Company

Dear Creditor:

Please be advised that on February 14, 2024, Howard Samuels, Ryan Hayes and Rally Capital Advisors, LLC were appointed Receiver in the Circuit Court of Cook County, Chancery Division Case No. 2024 CH 00720 of Rowboat Creative LLC (the "Receiver"), an Illinois corporation located at 4200 West Diversey Avenue, Chicago, IL 60639 ("Rowboat" or the "Company"). The initial purpose of the Receivership was to evaluate the business as a going concern and manage the business while ownership focused on resolving their disputes. By March 21, 2024, the Receiver conveyed to the Court and to ownership the need to sell and/or liquidate the Company and petitioned the Court for authority to do so. On April 5, 2024, the Court granted the Receiver the authority to sell or liquidate Rowboat as requested.

The Process for Sale or Liquidation

Based on performance of the Company and the fact that the Company is insolvent, it is the Receiver's intent to liquidate this Company as a fiduciary of the Court and under the Court's direction and authority, and distribute the proceeds, less the costs of administration, to the Company's creditors on *pro rata* basis, less holders of priority tax and wage claims.

Events Leading to the Receivership

Originally founded in 2006, Chicago, IL-based Rowboat Creative was a creative merchandising agency offering custom screen printing, embroidery, direct-to-garment, dye sublimation, live branding, creative design, and fulfillment services. Following a dispute between Rowboat's ownership, a precipitous decline in business, and mounting debts, a Receiver was appointed to evaluate the Company to determine its sustainability as a going concern, and ultimately sell and or liquidate the Company should it be determined that the Company could not **continue as a going concern**. To this end, the Receiver vigorously marketed the Company which resulted in the presentment of an asset purchase agreement by one of the two owners of Rowboat. This agreement will be promptly reviewed by the Receiver and if agreed to by all parties, will be submitted to the Court for approval. The Receiver will keep all creditors advised of our progress.

Financial information provided to me from the Company as of, April 9, 2024, without audit or verification, indicated the following (all figures are approximate):

ASSETS		LIABILITIES	
Cash	\$ 39,281.49	General & Unsecured Debt	\$ 189,842.78
Accounts Receivable	24,138.14	Customer Deposits	5,100.00
Inventory	10,000.00	Payroll Liabilities	20,000.00
Equipment	<u>100,000.00</u>	Contingent Liabilities	172,404.81
		Receivership Expenses	<u>26,677.50</u>
Total Assets	\$173,419.63	Total Liabilities	\$414,025.09

350 North LaSalle Street
Suite 1100
Chicago IL 60654
Phone 312/645-1975
Fax 312/645-1976
www.rallyllc.com



There are approximately twelve (12) creditors, including the landlord for which Rowboat has lease obligations. Of the twelve creditors, nearly 90% of the existing creditor base have personal guarantees with ownership.

This notice has been sent to all known creditors of Rowboat Creative, including federal and state taxing authorities. **All creditors are requested to immediately execute and return to the Assignee's office the enclosed Affidavit of Claim with all supporting documentation reflecting the balance due from Rowboat Creative as of April 18, 2024.**

In the event you require additional information regarding this receivership, please do not hesitate to contact the Undersigned.

Thank you for your patience and cooperation.

Sincerely,

A handwritten signature in black ink, appearing to be "H. B. Samuels", written over a horizontal line.

Howard B. Samuels, not Individually, but Solely as the Receiver of Rowboat Creative LLC

Enclosure

350 North LaSalle Street
Suite 1100
Chicago IL 60654
Phone 312/645-1975
Fax 312/645-1976
www.rallyllc.com



**COMBINED NOTICE OF RECEIVERSHIP
PROOF OF CLAIM AND BAR DATE NOTICE**

**RE: ROWBOAT CREATIVE LLC
4200 WEST DIVERSEY AVENUE
CHICAGO, IL 60639**

To: All Known Creditors of Rowboat Creative LLC

PLEASE TAKE NOTICE that on February 14, 2024, Howard Samuels of Rally Capital Advisors, LLC was appointed receiver (the "Receiver") of Rowboat Creative LLC ("Rowboat") pursuant to the attached order (the "Court Order"). On April 5, 2024, the court authorized the Receiver to sell and / or liquidate the assets of Rowboat.

PLEASE TAKE FURTHER NOTICE that the Receiver has fixed July 26, 2024, as the **BAR DATE**, or the last date for the timely submission of unsecured, non-priority claims against Rowboat. Your claim must be received by the Receiver on or before the Bar Date for you to participate in any distribution of the company's assets, unless the Receiver, in his sole discretion, extends the Bar Date.

PLEASE TAKE FURTHER NOTICE that this form, when completed and executed by you and returned to the Receiver shall constitute your Proof of Claim. Please attach legible copies of all invoices, statements, contracts or other evidence of your claim to this form when it is returned.

350 North LaSalle Street
Suite 1100
Chicago IL 60654
Phone 312/645-1975
Fax 312/645-1976
www.rallyllc.com



PROOF OF CLAIM

**RE: ROWBOAT CREATIVE LLC
4200 WEST DIVERSEY AVENUE
CHICAGO, IL 60639**

Claim Amount: \$ _____

Company Name: _____

Address: _____

City, State, Zip: _____

Telephone: _____

Fax: _____

E-Mail: _____

By: _____

Print Name & Title: _____

Date: _____

Please complete and return this form to the Receiver of Rowboat Creative LLC, Case No. 24 CH 00720 Trust along with any documentation to substantiate your claim on or before the Bar Date of July 26, 2024 to the following address, facsimile number or email address:

MAIL TO:
Rally Capital Advisors, LLC
350 North LaSalle Drive
Suite 1100
Chicago, IL 60654

OR

FAX TO:
Claims Department
(312) 645-1976

OR

EMAIL TO:
claims@rallyllc.com

ATTN: Rowboat Creative LLC, Case No. 24 CH 00720

350 North LaSalle Street
Suite 1100
Chicago IL 60654
Phone 312/645-1975
Fax 312/645-1976
www.rallyllc.com

EXHIBIT E

LETTER OF INTENT

Date: May 27, 2024

From: All World Agency, LLC
c/o Lucas Guariglia (Guariglia)
251 Little Falls Drive
Wilmington, Delaware 19808
lucasideas@gmail.com
847-828-0944

To: Howard Samuels, Receiver for Rowboat Creative, LLC
c/o Rally Capital Advisors
350 North LaSalle Street
Chicago, IL 60654
howard@rallyllc.com
ryan@rallyllc.com

Dear Mr. Samuels and Mr. Hayes:

This letter of intent (Letter) sets forth the mutual intent of Rowboat Creative, LLC (Company) and All World Agency, LLC (Newco or Buyer), to enter into and consummate a transaction under which Buyer will purchase certain assets of Company. The following are the key terms proposed by Buyer for the contemplated transaction:

1. The assets of the Company to be purchased (Purchased Assets) would include (i) all customer and prospect lists, records, mailing lists, advertising items, promotional items, and marketing information, (ii) intangible property (including designs, schematics, know-how, product specifications, names, trade names, trademarks, copyrights, other intellectual property, trade secrets, internet sites, domains, URLs and similar property – provided same is assignable), (iii) unfilled customer contracts (and any inventory and/or raw materials relating to such contracts) (collectively, the Assumed Contracts), and (iv) customer files and lists, internal backend files, production separations, embroidery files, and all other business files relating to Company.
2. Purchased Assets would exclude all Company cash and cash equivalent balances, trade receivables, inventory (other than as included in the Assumed Contracts), all equipment, fixtures, computer hardware, furniture, and other tangible property.
3. As consideration for the Purchased Assets, Buyer will:

- (a) Pay Company the sum of \$15,000, provided that such sum is utilized by the Receiver to pay Company creditor claims;
 - (b) Pay and discharge that certain trade debt to Delta Apparel in the amount of \$371.57 and disclaim any right to repayment of same;
 - (c) Disclaim Guariglia's right to repayment or submission of a claim for repayment of his \$15,000 loan receivable from Rowboat Creative, LLC; and
 - (d) Assume the liability of the Company's trade accounts payable as are not paid pursuant to subparagraph (a) above; to wit: S&S Activewear, Independent Trading Co., Onestep Inc., Sun Apparel, AS Colour, Dysun, Ralawise, and Uline.
4. As further consideration for the Purchased Assets, and the other provisions of this Letter, Buyer is willing to enter into an agreement with Joseph Zangrilli (Zangrilli) providing for at least (i) Buyer's and Guariglia's release and hold harmless undertaking of Zangrilli with respect to the trade accounts payable assumed by Buyer hereunder, (ii) Zangrilli's agreement not to interfere with the transaction contemplated hereby, (iii) a mutual non-disparagement provision binding both Guariglia and Zangrilli, and (iv) the mutual agreement of Guariglia, Buyer, and Zangrilli to release and hold each other harmless for actions/inactions relating to the operation of Rowboat Creative, LLC on and prior to the date of Closing, including as to the claims or potential claims of the parties in that certain lawsuit pending in the Circuit Court of Cook County, Illinois 2024 CH 00720 (among other claims asserting wrongful distribution and compensation).
 5. Closing would take place as promptly as practicable following negotiation of a definitive asset purchase agreement (the APA) and authorizing court order (if necessary).
 6. Upon signing of this Letter, the parties will draft the APA containing customary and appropriate provisions for transactions of this nature consistent with the terms of this Letter. During the negotiation as to the APA, the Company will not manufacture, solicit for sale, or sell any screen-printed products or other products customarily manufactured or sold by the Company prior to the date of this Letter.
 7. In order to induce Buyer to deliver this Letter, Company agrees, that following the acceptance of this Letter, and prior to the first to occur of the (a) express written mutual termination of the exclusivity period by Buyer and Seller, (b) expiration of thirty (30) days from the acceptance of this Letter without signing the APA, or (c) receipt by Seller of a definitive agreement Seller desires to accept for the sale of the Purchased Assets for consideration that equals or exceeds \$30,000 more than the value of the consideration payable by Buyer to Company set forth herein (as reasonably valued by Company), that Seller shall not accept any offer to purchase all or any portion of the Purchased Assets.

8. Promptly upon acceptance of this Letter by Company, Company shall provide such reasonable documentation and information requested by Buyer in order that Buyer may conduct reasonable and customary due diligence concerning the Purchased Assets and other aspect of the contemplated transaction.
9. Except for the obligations described in paragraphs 5, 6, 7, and 8 which are binding and legally enforceable, this Letter is merely a present statement of intent and is not binding on any party until such time, if ever, that the parties execute and deliver the APA.

Please sign and return a copy of this Letter to reflect your agreement to its terms.

Very Truly Yours,



Lucas Guariglia, individually

All World Agency, LLC



By: Lucas Guariglia, its Manager

Read and agreed this 31st day of May 2024

Rowboat Creative, LLC

Howard Samuels, not individually, but as an
Agent of Rally Capital Advisors, appointed Receiver
for Rowboat Creative, LLC



April 30, 2024

To Whom it May Concern...

In return for Rowboat's order flow being pushed to Greenacre Branding, LLC, we would offer a 25% commission on NET profits for each order. This would be good for 18 months. On the same note, it might be best to also have Rowboat's URL be pointed towards www.greenacrebranding.com.

We would not be opening our books to anyone, but we would share the costs for every order, so nobody has to be concerned about false costs.

We have the capabilities to sell apparel and all promotional products, so any business above what Rowboat currently offers would be included in the commissions.

Rich Friedman
President
Greenacre Branding

FILED DATE: 5/29/2024 5:40 PM 2024CH00720

EXHIBIT F

RALLY

CAPITAL ADVISORS

350 N. LaSalle Street
Suite 1100
Chicago, IL 60654

Invoice Date	Invoice No.
4/30/2024	25817

Bill To:

Case # 2024 CH 00720 Rowboat
Creative, LLC
350 N LaSalle St., Ste 1100
Chicago, IL 60654

Project:

Terms

Due Date

Due on receipt

4/30/2024

Date	Description		Hours	Rate	Amount
4/1/2024	Review of e-mail correspondence from L. Guariglia regarding PO's to be paid.	RH	0.2	350.00	70.00
4/2/2024	Assembled information for potential buyer and shared customers sales and equipment detail. Discussion with Lucas on ordering for items, follow-up with Joe on payroll submission and approval.	RH	2	350.00	700.00
4/3/2024	Prepare for (.2) and attend court hearing (.4).	RH	0.6	350.00	210.00
4/3/2024	Prepared detailed receiver's report to file for follow-up court hearing on Friday.	RH	7.5	350.00	2,625.00
4/4/2024	Discussion with Mendelsohn regarding filed Receiver's report and cash budget. Conversations with HBS and Lucas on state of affairs and daily actions to be taken. Follow-up with Joe on open orders.	RH	1.5	350.00	525.00
4/5/2024	Attended court hearing to discuss ability to liquidate and sale business.	RH	0.5	350.00	175.00
4/5/2024	Conversation with Mendelsohn and HBS on potential offer from L. Guariglia. Correspondence with Lucas and Joe on operations and production.	RH	0.7	350.00	245.00

Thank You For Your Business!

Total

Payments/Credits

Balance Due

RALLY

CAPITAL ADVISORS

350 N. LaSalle Street
Suite 1100
Chicago, IL 60654

Invoice Date	Invoice No.
4/30/2024	25817

Bill To:

Case # 2024 CH 00720 Rowboat
Creative, LLC
350 N LaSalle St., Ste 1100
Chicago, IL 60654

Project:

Terms

Due Date

Due on receipt

4/30/2024

Date	Description		Hours	Rate	Amount
4/8/2024	Discussion with Joe on employee headcount reduction, follow-up with Lucas on production ability. Correspondence with landlord regarding receivership and schedule of meetings. Follow-up discussion with Plaintiff attorney and receiver regarding status of Company, completion of in-house orders, and shut down.	RH	7	350.00	2,450.00
4/9/2024	Analysis of in-house production orders and correspondence with Joe regarding ability to produce and timeline. Discussion with Aaron Equipment on auction.	RH	1	350.00	350.00
4/9/2024	Creation of creditor notice based on asset v liability position review. Correspondence with HBS.	RH	2.5	350.00	875.00
4/10/2024	Correspondence with L. Guariglia about day to day operations, orders, cash receipts, and disbursements to be issued. Request and review of sublease documentation. Discussion regarding response to all creditors and having real estate firm evaluate options with leased real estate.	RH	1.5	350.00	525.00
4/11/2024	Handle operational issues.	RH	0.5	350.00	175.00
4/11/2024	Correspondence with parties in case on open items/jobs/scheduling.	RH	0.5	350.00	175.00

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Terms	Due Date
Due on receipt	4/30/2024

Date	Description		Hours	Rate	Amount
4/11/2024	Analysis of LOI, conference call with landlord and shared detailed information package with them. Walkthrough Aaron Equipment of facility to obtain auction proposal.	RH	2.3	350.00	805.00
4/12/2024	Walked through auctioneer for proposal, reviewed open jobs with Joe, review cash position. Correspondence with all parties.	RH	3.3	350.00	1,155.00
4/15/2024	Correspondence with Joe about payroll prep and detailed discussions with Lucas about rejection of Brand Additions order and return of funds to customer. Analysis of bank detail to reject charges.	RH	1.5	350.00	525.00
4/15/2024	Correspondence and troubleshooting of multiple problems pertaining to orders, creditors, employees, and go forward path.	RH	1.3	350.00	455.00
4/15/2024	Discussion with LG counsel.	RH	0.5	350.00	175.00
4/16/2024	Follow-up with L. Guariglia on bank charge reversals and order status for orders to be issued as part of final completions.	RH	0.6	350.00	210.00
4/18/2024	Review of 53rd activity, discussions with Lucas regarding bank account and customer orders. Troubleshoot day to day operational issues and production problems. Interface with ownership. Discussion with HBS.	RH	3.4	350.00	1,190.00

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Bill To:

Case # 2024 CH 00720 Rowboat
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350 N LaSalle St., Ste 1100
Chicago, IL 60654

Project:

Terms

Due Date

Due on receipt

4/30/2024

Date	Description		Hours	Rate	Amount
4/19/2024	Management of various open items/questions. Confirm return of BA monies to customer, follow-up with Bank on items returned.	RH	1.2	350.00	420.00
4/22/2024	Sales tax filings.		0.7	350.00	245.00
4/23/2024	Onsite to process vendor product returns.	RR	3.5	125.00	437.50
4/23/2024	Day to day management of operational issues, final customer shipments, interface amongst owners to manage disputes. Review of bank activity and updates to cash flow tracking.	RH	2	350.00	700.00
4/24/2024	Day to day management of operational issues, final customer shipments, interface amongst owners to manage disputes. Review of bank activity and updates to cash flow tracking.	RH	1	350.00	350.00
4/24/2024	Analysis of shipping station activity and field calls regarding order shipment dispute amongst parties. Detailed discussions with Joe and Lucas and follow-up with HBS.	RH	1	350.00	350.00
4/25/2024	Instructed L. Guariglia to initiate wire back to BA, informed Joe Z. Inquired about redirect of Printavo payments.	RH	0.5	350.00	175.00
4/26/2024	Assist RH in sending creditor's letter.	SS	0.25	125.00	31.25
4/26/2024	Finalize creditor notice and email to creditors upon request	JDS	1.5	300.00	450.00

Thank You For Your Business!

Total

Payments/Credits

Balance Due



Invoice Date	Invoice No.
4/30/2024	25817

Case # 2024 CH 00720 Rowboat
Creative, LLC
350 N LaSalle St., Ste 1100
Chicago, IL 60654

Terms	Due Date
Due on receipt	4/30/2024

Date	Description		Hours	Rate	Amount
4/26/2024	Proofed final creditor notice and discussed disbursement to creditors with SS.	RH	1	350.00	350.00
4/29/2024	Discussion with Mendelsohn.	RH	0.3	350.00	105.00
4/30/2024	Review of offer and correspondence with R. Friedman.	RH	0.5	350.00	175.00
	Bank Fees Debited from Rally Account due to zero balance			62.03	62.03

Total	\$17,465.78
Payments/Credits	\$0.00
Balance Due	\$17,465.78